

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MARINA BARAN,

Petitioner

VS.

ALEXANDER BARAN,

Respondent

) Case Number: FDI-23-798804

) Hearing Date: April 21, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT; ORDER TO SHOW CAUSE AND
AFFIDAVIT FOR CONTEMPT; ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

Appearances required. The parties may appear in person in Dept. 403 or remotely by Zoom video.

If a party chooses to appear by video, that party must abide by the Notice and Instructions for

Remote Appearances in San Francisco Family Court set forth above.

1) On for hearing are Petitioner Marina Baran's Orders to Show Cause and Affidavits for Contempt filed on 10/28/25, 01/29/26, and 02/18/26 alleging that Respondent Alexander Baran violated a Stipulation and Order filed 10/14/25 providing Petitioner with one week per month of custody of the family dog, Lexi.

2) At the prior 12/30/25 hearing, both parties appeared in pro per and were sworn and examined. The Court issued the following orders:

- a. Petitioner is granted visitation with the family dog, Lexi, three days per week starting 12/30/25 at noon and ending 1/2/26 at noon. Thereafter, the parties shall return to the original visitation schedule ordered (in the Stipulation and Order filed 10/14/25).
- b. Per *Cedars-Sinai Imaging Medical Group v. Superior Court* (2000) 83 Cal.App.4th 1281, personal service of an Order to Show Cause and Affidavit for Contempt-on-contempt citee is required.

1 c. As such, the hearing on Petitioner's Order to Show Cause and Affidavit for Contempt filed
2 10/28/25 is hereby continued to 3/24/26 at 9:00 AM in Dept. 403 to permit Petitioner time to
3 effectuate proper service.

4 d. Petitioner shall have a third-party, 18 years of age or older, personally serve Respondent with
5 the Order to Show Cause and Affidavit for Contempt filed 10/28/25 at least 30 calendar days
6 prior to the next hearing date.

7 3) On 12/30/25, Petitioner filed a Proof of Personal Service indicating Respondent was served at the
8 courthouse on 12/30/25. On 2/17/26, Petitioner filed a Proof of Personal Service of the 01/29/26 OSC
9 re: Contempt, which was personally served on 02/06/26. On 3/6/26, Petitioner filed a Proof of
10 Personal Service of the 02/18/26 OSC re: Contempt indicating Respondent was personally served on
11 02/25/26. Accordingly, the Court finds Petitioner has satisfied the service requirement of all three
12 OSC's re: Contempt on calendar on 4/21/26.

13 4) On 3/4/26, the Court continued the matter to 4/21/26, for all three OSC's re: Contempt to be heard on
14 the same day and time. In addition, the Court continued the matter to determine whether Respondent
15 qualifies for court appointed counsel. The Court also ordered Respondent to submit an Income and
16 Expense Declaration prior to the next hearing.

17 5) As of 4/15/26, Respondent has failed to file an Income and Expense Declaration.

18 6) **The parties are ordered to appear.** The Court will arraign Respondent at the 04/21/26 hearing and
19 set a future trial date on all three OSCs re: Contempt.
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